

PROCESS GUIDANCE - WAS YOUR RECORD ACTUALLY ERASED, AND WHAT COMES NEXT

This guidance is prepared for finding out whether a Connecticut record that should have been erased automatically was actually erased, and preparing for the C.G.S. Sec. 54-142t(g) review.

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

WHY THIS QUESTION NEEDS ASKING AT ALL. Connecticut erases certain records by operation of law under C.G.S. Sec. 54-142a(e), through the automated process Sec. 54-142t creates - but the state does not currently notify people that their records were erased. 'Was my record actually erased' is therefore the question this guidance answers first, and since 1 January 2024, Sec. 54-142t(g) gives a person who believes their record was required to be deemed erased, and finds it has not been marked as erased, a review remedy at the Department of Emergency Services and Public Protection (DESPP).

STAGE ONE - GET THE RECORD, READ IT, DECIDE. This is the stage this packet completes.

STEP ONE. Obtain your own criminal history record search from the State Police Bureau of Identification (SPBI), using form DPS-0846-C, the State of Connecticut Criminal History Record Request Form. You obtain and mail that form yourself - this packet does not fill it, and the statute requires a copy of this search as the proof that the information has not been marked as erased. Mail the completed form with payment to: DESPP-SPBI, 1111 Country Club Road, Middletown, CT 06457-2389, by check or money order payable to 'Treasurer-State of CT'.

STEP TWO. Know the cost before you mail. As printed on the DPS-0846-C form dated 12/01/17: \$36 for a name and date of birth search showing only the existence of a record; \$75 for a conviction history record search by name and date of birth; or \$75 by fingerprint plus \$15 for fingerprinting at a Connecticut State Police location. **THOSE FIGURES ARE FROM A FORM DATED 12/01/17 AND MUST BE VERIFIED WITH DESPP-SPBI BEFORE RELYING ON THEM** - the form itself warns that information may change.

STEP THREE. Read the result for an erasure marking. What you are looking for is whether the conviction you believe should have been erased appears, and whether it is marked as erased.

STEP FOUR. Decide whether there is a case. The records eligible to be deemed erased by operation of law are those Sec. 54-142a(e) describes, and the timing turns on dates you know: the date of the offense, and the date of your most recent judgment of conviction for any crime. If the record shows the information marked as erased, there is nothing to pursue - you are done, and that is a good outcome. If the conviction appears unmarked and you believe it was required to be deemed erased, stage two exists for exactly that.

STAGE TWO - THE DESPP SUBMISSION. THIS PACKET DOES NOT GENERATE IT, AND HERE IS WHY. Sec. 54-142t(g) requires the submission to be made to DESPP 'in a form and manner determined by the department'. That form and manner is not in the statute, it had not been located when the legal-design record was made, and the record classifies inventing a DESPP filing form as a design blocker. No submission document is generated, and none should be improvised: ask DESPP what form

and manner it has determined for a Sec. 54-142t(g) submission, and use exactly that.

WHAT STAGE TWO LOOKS LIKE, SO YOU KNOW WHAT YOU ARE WALKING INTO. The submission includes a copy of your criminal history record search demonstrating that the information has not been marked as erased. DESPP then determines the matter FOLLOWING A CONTESTED HEARING, and that determination is a final decision under the Uniform Administrative Procedure Act (chapter 54). A contested administrative hearing against the state is a lawyer's proceeding: when you reach it, take a lawyer. This guidance is the whole of what self-help covers on this route.

ONE RUMOUR TO IGNORE. A rule that the SPBI report itself must be 'dated on or after January 1, 2024' appears in older internal material and looks like a misreading - that date is when the Sec. 54-142t(g) remedy became available, and nothing found requires the report to bear a post-2024 date. The point is recorded as unresolved rather than as a rule; get a current report anyway, because a current report is simply better evidence.

WHEN TO STOP AND GET HELP.

- The DESPP submission stage itself: its form and manner is undetermined here, and the contested hearing that follows is a lawyer's proceeding.
- You have an immigration matter.
- You cannot tell from the record whether the conviction was eligible for erasure by operation of law - eligibility under Sec. 54-142a(e) can turn on offense class, date and your later record, and a wrong guess wastes the filing.

TERMINOLOGY. Connecticut says ERASURE - not expungement, not sealing.

Route: obligation:unit:CT:ct-missed-erasure:ct-missed-erasure-stage-1-record-and-assessment ;
obligation:unit:CT:ct-missed-erasure:ct-missed-erasure-stage-2-despp-submission